

HOUSE No. 2834

The Commonwealth of Massachusetts

PRESENTED BY:

Dennis C. Gallagher

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the veteran allowance for public retirees.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>1/13/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>1/16/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>3/3/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>4/17/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>7/23/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/23/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>7/23/2025</i>

HOUSE No. 2834

By Representative Gallagher of Bridgewater, a petition (accompanied by bill, House, No. 2834) of Dennis C. Gallagher, Richard G. Wells, Jr., and Rodney M. Elliott relative to the veteran allowance for public retirees. Public Service.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2626 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the veteran allowance for public retirees.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Paragraph (b) of subdivision (2) of section 5 of chapter 32 of the General
2 Laws, as appearing in the 2018 Official Edition, is amended by inserting in line 142 after the
3 word “dollars” the following words:- or upon acceptance of paragraph (b 1/2) fifty dollars.

4 SECTION 2. Paragraph (b) of subdivision (2) of section 5 of said chapter 32, as so
5 appearing, is further amended by deleting in line 145 the words “in any case” and inserting in
6 place thereof the following words:- or upon acceptance of paragraph (b 1/2) one thousand
7 dollars.

8 SECTION 3. Subdivision (2) of section 5 of said chapter 32 is hereby further amended by
9 inserting the following new paragraph:-

(b 1/2) Upon acceptance of this provision by a retirement system, any member of Group 1 or Group 2 or Group 4, who is a veteran as defined in section one, shall receive, in lieu of paragraph (b), an additional yearly allowance of fifty dollars for each year of creditable service or fraction thereof; provided, that the total amount of said additional retirement allowance shall not exceed one thousand dollars in any case. Acceptance of this provision by a retirement system shall be by a majority vote of the board of each such system, subject to the approval of the legislative body. For the purposes herein, "legislative body" shall mean, in the case of a city, the city council in accordance with its charter, in the case of a town, the town meeting, in the case of a county, the county retirement board advisory council, in the case of a region, the regional retirement board advisory council, in the case of a district, the district members, and, in the case of an authority, the governing body. Acceptance shall be deemed to have occurred upon the filing of a certification of such votes with the commission. For purposes herein, the state teachers' and state employees' retirement systems shall be deemed to have accepted this provision.

SECTION 4. Paragraph (e) of subdivision (2) of section 7 of said chapter 32, as appearing in the 2018 Official Edition, is amended by inserting in line 160 after the dollar amount "\$15" the following words:- or upon acceptance of paragraph (f) \$50; and is further amended by inserting in line 162 after the dollar amount "\$300" the following words:- or upon acceptance of paragraph (f) \$1,000.

SECTION 5. Subdivision (2) of section 7 of said chapter 32 is hereby further amended by inserting at the end thereof the following new paragraph:-

(f) Upon acceptance of this provision by a retirement system, any member of Group 1 or Group 2 or Group 4, who is a veteran as defined in section one, shall receive, in lieu of paragraph (b), an additional yearly allowance of fifty dollars for each year of creditable service or fraction thereof; provided, that the total amount of said additional retirement allowance shall not exceed one thousand dollars in any case. Acceptance of this provision by a retirement system shall be by a majority vote of the board of each such system, subject to the approval of the legislative body. For the purposes herein, "legislative body" shall mean, in the case of a city, the city council in accordance with its charter, in the case of a town, the town meeting, in the case of a county, the county retirement board advisory council, in the case of a region, the regional retirement board advisory council, in the case of a district, the district members, and, in the case of an authority, the governing body. Acceptance shall be deemed to have occurred upon the filing of a certification of such votes with the commission. For purposes herein, the state teachers' and state employees' retirement systems shall be deemed to have accepted this provision.

SECTION 6. Paragraph (c) of subdivision (2) of section 26 of said chapter 32, as appearing, is amended by deleting in line 131 the dollar amount "\$15" and inserting in place thereof the following dollar amount:- \$50; and is further amended by deleting in line 134 the dollar amount \$300 and inserting in place thereof the following dollar amount:- \$1,000.

SECTION 7. The provisions of this act shall be prospective from the date of acceptance of this act and shall not entitle a member, who is entitled to the benefits provided under this act, to any retroactive benefits.